

5. 24CV01149 LOBO, CLINT v. STEVEN MADISON, TRUSTEE OF THE GENE N & HELEN C MADISON FAMILY TRUST

EVENT: Motion for Summary Judgment

California Rule of Court, Rule 3.1113 states in pertinent part as follows:

“(d) Length of memorandum

... In a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 20 pages. No reply or closing memorandum may exceed 10 pages. The page limit does not include the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service. ...

(g) Effect of filing an oversized memorandum

A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper.”

Here, the Opposition is 29 pages in total, 24 pages not including the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service. Likewise, the Reply is 34 pages in total, 30 pages not including the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service. Thus, both the Opposition and Reply are in violation of California Rules of Court, Rule 3.1113, and substantially so.

Butte County Local Rule 3.11B. provides that “[t]he Court may, in its discretion, refuse to consider late filed papers or may impose sanction, including monetary sanctions...”

However, in its discretion, the Court has considered the merits of the Motion.

Defendant Steven Madison, as Trustee of the Gene N. & Helen C. Madison Family Trust’s (“Defendant” herein) Request for Judicial Notice is granted.

Plaintiff Clint Lobo’s (“Plaintiff” herein) Evidentiary Objections to the Declarations of Steven Madison, Amanda J. Granger, and Michael McCrady are overruled. Defendant’s Evidentiary Objections to the Declaration of Clint Lobo are overruled.

The Court finds that a triable issue of material fact exists as to whether Plaintiff paid the promissory note in full [see Undisputed Material Fact Nos. 8, 12, 17, 18, 21, 29, 32; Plaintiff’s Additional Undisputed Material Fact Nos. 3-9]. Defendant/Cross-Complainant Steven Madison, Trustee of the Gene N & Helen C Madison Family Trust’s Motion for Summary Judgment is denied. Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.

6. 24CV01402 LIANG, ZHIBIN V. HUANG, XIANGMEI

EVENT: Application/Motion to Enforce Amended Judgment and for Order Effectuating Transfer of Real Property

The Application/Motion to Enforce Amended Judgment and for Order Effectuating Transfer of Real Property is granted, and the Court will sign the form of order submitted. The Court directs Plaintiff to submit ex parte an Application for Appointment of an Elisor that is in compliance with Butte County Local Rule 1.12, Subdivisions B, C, and E, the Court finding that the remaining requirements have been satisfied.

7-8. 24CV03754 RAHMN, JACK v. MULHOLLAND, JACK ET AL

EVENTS: (1) City of Chico's Motion for Summary Judgment

(2) State Defendants' Motion for Summary Judgment or, Alternatively, Summary Adjudication

City of Chico's Motion for Summary Judgment; or in the Alternative,
Summary Adjudication of the Issues Against the Complaint

Defendant and Cross-Complainant City of Chico's ("the City" herein) Request for Judicial Notice is granted. Plaintiff Jack Rahmn's ("Plaintiff" herein) Request for Judicial Notice is granted.

The Court finds that triable issues of material fact exist as to whether the subject premises where Plaintiff was injured was in a dangerous condition at the time of the incident and whether the injury to the Plaintiff was proximately caused by the dangerous condition [Undisputed Material Fact ("UMF" herein) Nos. 31, 36]; whether the City had actual or constructive notice of the condition causing Plaintiff's injuries [UMF No. 37]; and whether the City is protected by design immunity under *Government Code* §830.6 based on the approval and reasonableness of the subject crosswalk and intersection

The City of Chico's Motion for Summary Judgment; or in the Alternative, Summary Adjudication of the Issues Against the Complaint is denied. Counsel for the Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.

State Defendants' Motion for Summary Judgment or,
Alternatively, Summary Adjudication

Defendants State of California and Board of Trustees of the California State University (collectively "Defendants" herein) Request for Judicial Notice is granted. Plaintiff Jack Rahmn's ("Plaintiff" herein) Request for Judicial Notice is granted.

The Court finds that triable issues of material fact exist as to whether the alleged dangers at the bike lane/crosswalk intersection were reasonably apparent to a person exercising due care [Undisputed Material Fact ("UMF" herein) Nos. 44, 45]; whether the alleged lack of warnings or a protective barrier did or did not proximately cause Plaintiff's injury [UMF Nos. 9, 13, 19, 47, 48, 52, 58, 65]; whether Defendants are or are not